

		Defendant alleged sufficient facts to state this cause of action against Honor Finance. (FAXC, ¶¶ 1-4,13-16, 19, 20, 23, 24, and 30-34.) As discussed above, Defendant alleged sufficient ultimate facts to support an alter ego theory against Honor Holdings. (FAXC, ¶ 11.) Accordingly, the demurrer as to Honor Holdings is overruled. <u>Third cause of action for declaratory relief</u> To state a cause of action for declaratory relief, Defendant must allege: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations. (<i>Wilson & Wilson v. City Council of Redwood City</i> (2011) 191 Cal.App.4th 1559, 1582.) The Court previously sustained Plaintiffs' demurrer to this cause of action as alleged in the initial cross-complaint on the ground that Defendant did not alleged sufficient facts to state this cause of action against Plaintiffs. The Court noted that although Defendant alleged sufficient facts to state the second cause of action for equitable/implied indemnity against Honor Finance, Defendant did not allege an actual controversy in the Cross-Complaint. For the reasons discussed above, Defendant has not alleged sufficient facts to state this cause of action against Plaintiffs. Although Defendant alleged sufficient facts to state the second cause of action for equitable/implied indemnity against Plaintiffs, Defendant did not allege an actual controversy in the Cross-Complaint. Accordingly, the demurrer is sustained with 15 days leave to amend. Plaintiffs shall give notice.
4.	2025-1481436 Bank of America vs. Bixby	Judgment Creditor Bank of America, N.A. obtained a Judgment against Judgment Debtor Jeffrey Bixby on 9/23/25. Thereafter, Judgment Creditor filed a Notice of Opposition to Judgment Debtor's Claim of Exemption. The claim of exemption, any attached financial statement, and notice of opposition to claim of exemption constitute the pleadings at a hearing to determine a claim of exemption and must be received into evidence. (Code Civ. Proc., § 703.580(a), (c).) "If no other evidence is offered, the court, if satisfied that sufficient facts are shown by the claim of exemption (including the financial statement if one is required) and the notice of opposition, may make its determination thereon. If not satisfied, the court shall order the

		hearing continued for the production of other evidence, oral or documentary.” (Code Civ. Proc., § 703.580(c).) The judgment debtor bears the burden of proof at a hearing on a claim of exemption. (Code Civ. Proc., § 703.580(b).) However, the exemption statutes are liberally construed in favor of the claimant. (<i>Kono v. Meeker</i> (2011) 196 Cal.App.4th 81, 86.) The Court initially continued the hearing because the Sherriff’s packet stated that a claim of exemption was enclosed, and no such claim was included with the packet. (ROA 30.) On 5/22/26, Judgment Creditor filed a declaration, noting that Judgment Debtor never filed a claim of exemption. (ROA 43.) Thus, pursuant to Code Civ. Proc., § 704.080(b)(2), only \$3,500 in the account is exempt. This leaves an excess of \$69,338.90. Because Judgment Debtor did not file a claim of exemption or anything else in this matter, the Court finds that he fails to meet his burden. (Code Civ. Proc., § 703.580, subd. (b).) Accordingly, the Court therefore finds that except for the statutory \$3,500 in Judgment Debtor’s account, the funds held by Judgment Creditor in the amount of \$69,338.90 are not exempt. Judgment Creditor shall give notice.
6.	2024-1411554 Abdullah vs. Figueroa	Cross-Defendants Jose Figueroa and Ayoub Benwali’s (collectively, “Cross-Complainants”) Motion for Terminating Sanctions Against Plaintiff/Cross-Defendant Essam Abdullah (“Abdullah”), and for Monetary Sanctions, is granted in part and denied in part. The request for terminating sanctions is denied. The request for monetary sanctions is granted. <u>Procedural Issues</u> Cross-Complainants filed a 190-page motion, including 32 exhibits, and failed to include any electronic bookmarks. (Cal. R. Ct. Rule 3.1110(f)(4).) Abdullah’s 65-page opposition includes <i>some</i> bookmarks, but he also failed to substantially comply with Rule 3.1110(f)(4). The parties are admonished that, for any future filings, failure to present their papers in compliance with the Rules may result in the Court’s refusal to consider the non-compliant papers. <u>Merits</u> Cross-Complainants move for terminating sanctions, striking Abdullah’s complaint, striking Abdullah’s answer to their cross-complaint, and for \$18,970.10 in monetary sanctions. (ROA 141.)